

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 25-31

NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

MOTION FOR DISMISSAL OF REPARATIONS SEEKING DOUBLE RECOVERY

Pursuant to the rules of the Federal Maritime Commission at 46 C.F.R. 502.70,¹ Orient Overseas Container Lines, Ltd. and OOCL (Europe), Ltd. (“OOCL” or “Respondents”) respectfully move for *in camera* examination of certain claims of Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”) and dismissal of those claimed violations for which NBG seeks awards of reparations from both Respondents herein and three other ocean common carrier respondents in FMC proceedings alleging Shipping Act violations.

BACKGROUND

On December 31, 2024, NBG filed a complaint before the Commission against four respondents, namely OOCL, Evergreen, Yang Ming, and Ocean Network Express (“ONE”), which was docketed, by the Commission as Docket No. 25-02. OOCL and ONE each filed a motion to sever at the outset. On December 31, 2025, the instant matter, as well as NBG’s complaint against ONE (which became FMC Docket No. 25-30) (“*NBG v. ONE*”), were severed

¹ Although the Commission’s rules do not require the parties to confer prior to the filing of a dispositive motion, Respondents did confer with Complainant with respect to this Motion on August 3, 2026.

by order of the Presiding Officer from FMC Docket No. 25-02, which was continued only as to respondents Evergreen and Yang Ming (“*NBG v. Evergreen and Yang Ming*”) (Doc. 3) (Notice of New Proceeding to Order Severing Cases) (served January 7, 2026).

On March 30, 2026, NBG served Complainant’s First Supplemental Objections and Responses to Respondents’ First Set of Interrogatories. In response to Respondents’ Interrogatory No. 11,² NBG supplemented its answer with two documents (marked Attorney’s Eyes Only by NBG), namely “Appendix B-1: { [REDACTED] [REDACTED] } and “Appendix B-5: { [REDACTED] [REDACTED] } NBG explained,

{ [REDACTED]

In *NBG v. Evergreen*, the public record indicates only that NBG has alleged it is entitled to reparations for damages caused by respondents in that proceeding in excess of \$4,951,000.³ See, Joint Status Report (Doc. 30) (January 13, 2026). Similarly, in *NBG v. ONE*, the public record indicates NBG has alleged it is entitled to reparations for damages caused by ONE in the total amount of \$36,632,159.49 “due to ONE’s shortfalls in honoring its service commitments

² OOCL Interrogatory No. 11 read, “Identify every NVOCC or “spot market” shipment by Complainant during the period covered by the Complaint. For each and every shipment identify whether Complainant contends the shipment was caused by or the result of noncompliance or breach by an ocean common carrier (including Respondents), and if so explain the facts and circumstances for that determination and identify the ocean common carrier.”

³ The Verified Complaint in Docket No. 25-02 (Doc. 1 at ¶ 115) NBG alleged Evergreen’s violations caused NBG \$2,905,937.04 in damages due to service contract shortfalls, and with respect to Yang Ming, \$2,005,638.51 (*id.*, at ¶126).

under its respective Service Contract [2020 and 2021] ...forced Complainant to secure space on the open market at high prices..." Docket No. 25-02, Verified Complaint (Doc. 1)(filed December 31, 2024) at ¶¶ 88-89.

On August 5, 2026, Complainant's corporate witness testified that the containers listed in Appendices B-1 through B-8 may include containers for which Complainant has also sought reparations against other ocean carriers in other FMC proceedings. Dep. Tr. of Bradley Scher 97:12–21 (Aug. 5, 2026) (relevant excerpts attached as Exhibit A):

Q [Counsel for OOCL]. Sure. Are any of the containers that are identified in Appendices B-1 through B-8 and C-1 through C8 included within any of your claims against any of the other ocean carriers in the pending FMC actions?

[OBJECTION OF COUNSEL]

A. [Bradley Scher] It may be.

Q. Do you know how many?

A. Not offhand, no.

ARGUMENT

Complainant is not entitled to obtain reparations for the same alleged additional shipment expenses from multiple carriers. That would be double, or more, recovery, which Commission precedent does not allow (see below). Further, there is no claim in any of the complaints that the multiple respondents are joint violators of the Shipping Act (and no such allegation could be ethically made), so there are no alleged joint tortfeasors from which Complainant may choose to extract the total. Accordingly, Complainant is in each case entitled—after presenting proof thereof—to recover *only* those additional shipping expenses that were proximately caused by that respondent's violations of the Shipping Act. That is, Complainant's allegedly higher payment to a particular non-vessel-operating common carrier (NVO) cannot be proximately caused by two,

three, or more specific respondents. Accordingly, it is not possible to proceed in this matter unless and until it is clear which extra shipping expenses Complainant attributes to which respondents, both to avoid prohibited multiple recovery and because litigating the same shipments multiple times is an inefficient use of the time of the litigants and of the tribunal.

A. Dismissing Duplicate Shipments Guards Against Double Recovery

The Commission's longstanding precedent generally prohibits double recovery.⁴ See, *TCW, Inc. v. Evergreen Shipping Agency (Am.) Corp.*, No. 1966(I), 2021 WL 794708, *28 (F.M.C. Feb. 19, 2021). The prohibition against duplicating reparations has also been recognized by the Presiding Officer. In *Bed, Bath & Beyond v. Yang Ming Marine Transport Corp.*, FMC Docket No. 23-10 (Order on Motion to Reopen Record and to Submit Supplemental Information) (July 16, 2026) (Doc. 74) ("*BBBY v Yang Ming*"), finding whether the Complainant had relied on the same shipments for its allegations of damages in Docket No. 23-02, *Bed, Bath & Beyond v. OOCL*, potentially relevant, the Presiding Officer ordered Complainant to supplement the record. (Doc. 74 at 3) ("*BBBY v. OOCL*"). The July 16, 2026, Order in *BBBY v. Yang Ming* requires the Complainant to provide charts comparing the shipments for which it is asserting entitlement to reparations for minimum quantity commitment ("MQC") shortfalls in both proceedings. Complainant is required to indicate the distinct shipments it listed in each proceeding. *Id.* at 3-4.

⁴ See 46 C.F.R. §§ 502.69, 502.216; *International Longshoremen's Ass'n v. Gateway Terminals, LLC*, No. 22-12, 2023 WL 4199207, *1 (F.M.C. Jun. 20, 2023); *Hapag Lloyd, A.G. and Hapag-Lloyd (Am.) LLC – Possible Violations of 46 U.S.C. § 41102(c)*, No. 21-09, 2022 WL 1239377, *4 (F.M.C. Apr. 22, 2022); *Hangzhou Qianwang Dress Co. v. RDD Freight Int'l Inc.*, No. 17-02, 2018 WL 4191529, *12 (F.M.C. Aug. 29, 2018)(Complainant "not entitled to double damages, however, so that the amount that [respondent] has already paid for the claim in the Chinese settlement will be subtracted from the amount of the reparations claim.").

B. Dismissing Duplicate Shipments Improves Efficiency of the Proceeding

Pursuant to Commission Rule 25, the Presiding Officer is generally authorized to regulate the proceeding before her. 46 C.F.R. § 502.25. Dismissing the reparations claims against OOCL for which NBG also seeks reparations from other respondents will also result in a more efficient (and less costly) litigation for the litigants and allow the merits to proceed more swiftly to consideration by the Presiding Officer. Conversely, requiring OOCL to continue to participate in discovery and otherwise litigate with respect to claims for which the same reparations for additional shipping expenses are sought by NBG from other respondents prejudices OOCL (as well as those other respondents) and unduly imposes additional litigation costs on them.

RELIEF REQUESTED

To be awarded reparations, Complainant is required to prove that OOCL's acts or omissions proximately caused its damages. The use of the same shipments to support allegations of MQC shortfall committed by multiple carriers is fallacious because NBG cannot establish a temporal connection that the decisions it made to ship containers by an alternate means were in each case caused by multiple carriers.⁵ Consequently, Respondents respectfully request the Presiding Officer order Complainants to submit under seal for an *in camera* review the appendices produced by Complainant in Docket Nos. 25-02, 25-30, and 25-31, and that the Presiding Officer compare the alleged damages in each and dismiss as to OOCL any reparations also sought against one or more other respondents. In the alternative, Respondents respectfully request Complainant in this proceeding be required to produce the same type of supplemental appendices as ordered in *BBBY v. Yang Ming* and that the Presiding Officer subsequently dismiss

⁵ NBG is represented by the same law firm that represents BBY and the same type of appendices produced in *BBBY v. OOCL* have been presented in the instant proceeding.

those allegations of the Amended Complaint for which Complainant seeks reparations against OOCL in this proceeding for which it has also sought reparations from the respondents named in FMC Docket Nos. 25-02 and/or 25-30.

Dated: August 13, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the date below, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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Dated: August, 13, 2026

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